

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into as of January 15, 2025 (the "Effective Date") by and between Acme Corporation, a Delaware corporation ("Provider"), and Globex Limited, a company incorporated in England and Wales ("Client").

1. TERM

This Agreement shall commence on the Effective Date and continue for an initial term of two (2) years, unless earlier terminated in accordance with Section 8. Thereafter it shall automatically renew for successive one (1) year periods unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

2. SCOPE OF SERVICES

Provider shall perform the software development and support services described in one or more Statements of Work (each, an "SOW") agreed by the parties. Each SOW shall be governed by the terms of this Agreement. In the event of a conflict, the terms of the SOW control only with respect to the specific services described therein.

3. FEES AND PAYMENT

Client shall pay the fees set out in each SOW. Provider shall invoice Client monthly in arrears. Client shall pay all undisputed invoices within thirty (30) days of receipt. Any amount not paid when due shall accrue interest at a rate of one and one-half percent (1.5%) per month, or the maximum rate permitted by law, whichever is lower.

4. INTELLECTUAL PROPERTY

All deliverables created by Provider specifically for Client under an SOW shall, upon full payment, be owned by Client. Provider retains all rights to its pre-existing materials, tools, and know-how, and grants Client a perpetual, non-exclusive licence to use such pre-existing materials solely as incorporated into the deliverables.

5. CONFIDENTIALITY

Each party shall keep the other party's Confidential Information confidential and shall not disclose it to any third party without prior written consent. This obligation shall survive termination of this Agreement for a period of five (5) years. Confidential Information does not include information that is or becomes publicly available through no fault of the receiving party.

6. WARRANTIES

Provider warrants that the services will be performed in a professional and workmanlike manner in accordance with generally accepted industry standards. Except as expressly stated, the services are provided "as is" and Provider disclaims all other warranties, whether express or implied, including any implied warranty of merchantability or fitness for a particular purpose.

7. LIMITATION OF LIABILITY

Except for breaches of confidentiality or indemnification obligations, neither party's aggregate liability arising out of or related to this Agreement shall exceed the total fees paid by Client under the applicable SOW during the twelve (12) months preceding the event giving rise to the claim. In no event shall either party be liable for any indirect, incidental, special, or consequential damages.

8. TERMINATION

Either party may terminate this Agreement for convenience upon sixty (60) days' prior written notice. Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days of receiving written notice of it. Upon termination, Client shall pay for all services performed up to the effective date of termination.

9. GOVERNING LAW AND DISPUTES

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. Any dispute arising under this Agreement shall be resolved by binding arbitration administered in Wilmington, Delaware, under the rules of the American Arbitration Association.

10. FORCE MAJEURE

Neither party shall be liable for any failure or delay in performance due to causes beyond its reasonable control, including acts of God, natural disasters, war, terrorism, labour disputes, or governmental action, provided that the affected party gives prompt notice and uses reasonable efforts to resume performance.

11. ENTIRE AGREEMENT

This Agreement, together with all SOWs, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings, whether written or oral. Any amendment must be in writing and signed by authorised representatives of both parties.